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Case Number: 25STCV32083 Hearing Date: August 11, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Alexandra Hensler

, et al.;

Plaintiffs,

vs.

Maor Gabso

, et al.,

Defendants.

Case No.:

25STCV32083

Hearing Date:

August 11, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Cross-Defendants'
Special Motion to Strike Cross-Complaint

MOVING PARTY: Plaintiffs and Cross-Defendants Alexandra
Hensler and Justice Shepard

RESPONDING PARTY: Defendants and Cross-Complainants Maor Gabso,
trustee of the Gabso Family Trust and Melissa Mandell-Brown

Special Motion to
Strike Cross-Complaint

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

EVIDENTIARY
OBJECTIONS

The court
declines to address the evidentiary objections to the declarations in support
of the motion because the items to which the objections are made are not
material to the court's ruling on the motion.

LEGAL
STANDARD

"The
anti-SLAPP procedures are designed to shield a defendant's constitutionally
protected conduct from the undue burden of frivolous litigation."¿
(Baral v. Schnitt (2016) 1 Cal.5th 376, 393.)¿

"The
anti-SLAPP statute does not insulate defendants from any liability for claims

arising from the protected rights of petition or speech.”

It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity.” (Id. at p. 384.)

“Resolution of an anti-SLAPP motion involves two steps.”

First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. If the

defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success.”

(Ibid. [citation omitted].) The

California Supreme Court has “described

this second step as a ‘summary-judgment-like procedure.’

The court does not weigh evidence or resolve conflicting factual claims.

Its inquiry is limited to whether the plaintiff has stated a legally sufficient

claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff’s

evidence as true, and evaluates the defendant’s

showing only to determine if it defeats the plaintiff’s

claim as a matter of law. “[C]laims

with the requisite minimal merit may proceed.”

(Id. at pp. 384-385 [citations omitted].)

DISCUSSION

Plaintiffs and cross-defendants

Alexandra Hensler and Justice Shepard (“Plaintiffs”) move the court for an order striking portions of the Cross-Complaint filed in this action by defendants and cross-complainants Maor Gabso, trustee of the Gabso Family Trust, and Melissa Mandell-Brown (“Defendants”) pursuant to Code of Civil Procedure section 425.16, also known as the anti-SLAPP (“strategic lawsuit against public participation”) statute.

The

court finds that Plaintiffs have not met their burden to demonstrate that the portions of the Cross-Complaint challenged by the motion arise from protected activity under Code of Civil Procedure section 425.16, subdivision (b)(1).

“Initially, the

moving defendant bears the burden of establishing that the challenged

allegations or claims ‘aris[e] from’ protected activity in which the defendant

has engaged.” (Park

v. Board of Trustees of California State University (2017) 2 Cal.5th 1057,

1061.) (T)he statutory phrase ‘cause of action...arising from’ means simply that the defendant’s act underlying the plaintiff’s cause of action must itself

have been an act in furtherance of the right of petition or free speech. (Citation.) In the anti-SLAPP context, the critical point is whether the plaintiff’s cause of action itself was based on

an act in furtherance of the defendant’s right of petition or free speech.” (City of Cotati v. Cashman (2002) 29 Cal.4th 69, 78.)

Defendants allege

that they leased the property that is the subject of this action to the

Plaintiffs under a written residential lease agreement. (Cross-Complaint ¶ 1;

Ex. A.) As relevant here, Defendants allege that Plaintiffs neglected and

misused the property and failed to timely notify Defendants of a mold issue at

the property. (Cross-Complaint ¶¶ 7-14.) Defendants allege that, after Defendants

completed mold remediation, Plaintiffs employed their online social media

presence to publish “sensationalized and knowingly false statements to a large online audience, falsely asserting that the home was mold-infested, toxic,

poorly constructed, unsafe. . . and

falsely portraying [Defendants] as abusive and irresponsible landlords.”

(Cross-Complaint ¶ 15.) Defendants blame these statements for Defendants’

inability to sell the property or lease it to a new tenant. (Cross-Complaint ¶

17.) Defendants’ first cause of action for breach of contract and fourth cause

of action for private nuisance are based in part on the allegedly false

statements. (Cross-Complaint ¶¶ 19, 22, 34, 36). Defendants’ fifth cause of

action for defamation is based entirely on these statements. (Cross-Complaint

¶¶ 38-42.)

Plaintiffs seek

to strike the allegations pertaining to their public statements as statements

“made in a place open to the public or a public forum in connection with an

issue of public interest,” or as “conduct in furtherance of the exercise of the

constitutional right of petition or the constitutional right of free speech in

connection with a public issue or an issue of public interest.” (Code Civ.

Proc., § 425.16, subd. (e)(3), (4).)

In order to

determine whether a statement is made in connection with an issue of public

interest, “[f]irst, we ask what ‘public issue or [] issue of public interest’

the speech in question implicates—a question we answer by looking to the

content of the speech. [Citation]. Second, we ask what functional relationship exists between the speech and the public conversation about some matter of public interest.” (FilmOn.com v. DoubleVerify Inc. (2019) 7 Cal.5th 133, 149-50 [addressing protected activity under subdivision (e)(4); see also Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106, 1118 [applying similar analysis to subdivisions (e)(1) and (e)(2)].) The first step requires “an objective inquiry, without deference to the movant’s framing or personal motivations.” (Geiser v. Kuhns (2022) 13 Cal.5th 1238, 1254.) The second step permits the introduction of “contextual factors,” such as “speaker, audience, and purpose” to identify the functional relationship between the speech and the public conversation. (Id. at pp. 1250, 1253.)

The court finds

that Plaintiffs have not met their burden under the first prong of the anti-SLAPP analysis because their papers do not address the functional relationship between their statements and the public conversation about some matter of public interest. Plaintiffs identify housing and habitability as matters of public interest to which their statements relate on their face. (Cross-Complaint ¶ 39.) What Plaintiffs do not discuss in their papers is how those statements contribute to any public discussion of those issues. Because it is the moving party’s burden to demonstrate that contribution in order to establish that the allegations arise from protected activity, Plaintiffs’ omission is fatal to their motion.

Plaintiffs also

assert that their statements may be protected as statements “made before a . . . judicial proceeding” or “made in connection with an issue under consideration or review by a . . . judicial body” (Code Civ. Proc., § 425.16, subd. (e)(1), (2).) It is undisputed that litigation had not commenced at the time the alleged statements were made, and Plaintiffs offer nothing demonstrating that the statements were made “in anticipation of litigation contemplated in good faith under serious consideration.” (Neville v. Chudacoff (2008) 160 Cal.App.4th 1255, 1268.) Plaintiffs have therefore failed to meet their burden to demonstrate that the allegations arise out of protected activity under these provisions as well.

For the reasons

stated above, the court denies Plaintiffs’ special motion to strike. The court also denies Defendants’ request for attorney’s fees under Code of Civil Procedure section 425.16, subdivision (c)(1).

ORDER

The court DENIES

plaintiffs and cross-defendants Alexandra Hensler and Justice Shepard's special motion to strike the Cross-Complaint.

The court orders defendants

and cross-complainants Maor Gabso, trustee of the Gabso Family Trust, and Melissa Mandell-Brown to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 11, 2026

Robert B. Broadbelt III

Judge of the Superior Court